TERMS AND CONDITIONS

This Master Policy Document constitutes a binding legal contract between you (the "**User**") and TAKE Solutions Limited ("Company", "we", "us", or "our"). By accessing or using the take.health Platform in any manner including browsing the website, creating an account, uploading health data, using AI-powered health features, or clicking "I Agree" you unconditionally accept this entire Master Policy Document in its entirety.

This Document comprises of integrated Parts each of them have equal legal force and are non-severable from one another. If you do not accept any part of this Document, you must immediately cease use of the Platform and close your account.

SECTION I: TERMS OF SERVICE

Acceptance of Terms

These Terms of Service ("**Terms**") are entered into between TAKE Solutions Limited, a company incorporated under the Companies Act 1956, having its registered office at 56, Ragas Building, Dr. Radhakrishnan Salai, Mylapore, Chennai, Tamil Nadu, 600004, India (hereinafter "**Company**", "**we**", "**us",** or "**our**"), and you, the person accessing or using the take.health Platform (hereinafter "**User**", "**you**", or "**your**").

These Terms govern your access to and use of the take.health website (www.take.health), user dashboard (www.take.health/dashboard), mobile applications, application programming interfaces (APIs), and all related services, features, content, and technology provided by the Company (collectively, the "**Platform**" or "**Services**").

Definitions

In this Master Policy Document, the following words and expressions shall have the meanings set out below unless the context requires otherwise:

Term	Meaning
Platform / Services	The take.health website, dashboard, mobile applications, APIs, AI-powered health tools, and all features and content made available by the Company.
Master Policy Document / Agreement	This entire document in its current version as published on the Platform.
User / Consumer User	An individual who registers on the Platform for personal preventive health monitoring, wellness tracking, and AI-assisted health insights.
Healthcare Provider / B2B User	A Registered Medical Practitioner, diagnostic laboratory, hospital, clinic, corporate wellness provider, or healthcare institution accessing the Platform for professional or institutional purposes.
AI Health Insights	Personalised health information, risk scores, wellness recommendations, lab report analyses, and predictive health assessments generated by the Platform's artificial intelligence and machine learning systems.
Health Data	All data pertaining to a User's physical or mental health submitted to, processed by, or generated on the Platform, including but not limited to lab reports, biometric

Term	Meaning
	measurements, medical history, dietary information, sleep data, and risk predictions.
SPDI	Sensitive Personal Data or Information as defined under Rule 3 of the IT (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 which encompasses all Health Data processed on this Platform.
Personal Data	As defined under Section 2(t) of the Digital Personal Data Protection Act 2023, any data about an individual who is identifiable by or in relation to such data.
Data Fiduciary	As defined under Section 2(i) of the DPDPA 2023, the Company, in its capacity as the entity that determines the purpose and means of processing Users' personal data.
Data Principal	As defined under Section 2(j) of the DPDPA 2023, the User, as the individual to whom the Personal Data relates.
Content	All text, images, videos, graphics, software, AI-generated reports, health assessments, and other materials available on or through the Platform.
User Content	Any data, information, materials, or content that a User uploads, submits, posts, or transmits through the Platform.
Subscription Plan	A paid access tier that grants the User access to premium features of the Platform.
Registered Medical Practitioner (RMP)	A person enrolled in the State Medical Register or the Indian Medical Register under the Indian Medical Council Act, 1956 / National Medical Commission Act, 2019.
Account	The registered profile created by a User on the Platform, accessible through unique login credentials.
Retention Period	The period for which a specific category of personal data is retained by the Company.
Data Processor	A third-party service provider who processes personal data on behalf of the Company under a Data Processing Agreement.
Legal Hold	A directive issued by the Company suspending the standard deletion schedule for specific data that may be relevant to actual or reasonably anticipated legal proceedings.
Force Majeure Event	Any event beyond the reasonable control of the Company, including natural disasters, epidemics, government actions, internet outages, cyberattacks, or other unforeseeable circumstances.
Grievance Officer	The officer appointed by the Company under Rule 3(1)(b) of the IT Intermediary Rules 2021 and Section 13 of the DPDPA 2023, as identified in Section 18 of this Document.
DPO	Data Protection Officer, an officer responsible for overseeing the Company's data protection compliance, including obligations under the DPDPA 2023 and, when applicable, obligations arising from designation as a Significant Data Fiduciary.
ABHA	Ayushman Bharat Health Account, the digital health identity issued under India's Ayushman Bharat Digital Mission (ABDM).
Cookies	Small text files, web beacons, pixels, local storage objects, and similar tracking technologies placed on a User's device when they access the Platform, as further described in Part V of this Document.

Term	Meaning
First-Party Cookies	Cookies set directly by the Company through the Platform for operational and functional purposes.
Third-Party Cookies	Cookies set by external service providers (including analytics, marketing, or AI tool providers) whose services are embedded within the Platform.
AI Output	Any health insight, risk score, wellness recommendation, preventive alert, lab report analysis, or other content generated by the Platform's AI/ML systems, as further described in Part IV of this Document.
AI System	Any artificial intelligence, machine learning, natural language processing, predictive analytics, or large language model system deployed on or integrated into the Platform to process User data and generate AI Outputs.
User-Generated Content (UGC)	Any information, data, text, health records, images, feedback, reviews, testimonials, forum posts, chat inputs, questionnaire responses, or other material uploaded, submitted, or transmitted by a User through the Platform.
Platform Content	All text, graphics, UI elements, visual design, logos, icons, images, audio clips, editorial content, health articles, wellness guides, data compilations, algorithms, software code, AI model architectures, AI Outputs, and the overall "look and feel" of the Platform.
Consent Management Framework (CMF)	the Electronic Consent Policy governing how the Company obtains, records, manages, and honours User consent for all data processing activities.
Consent Artefact	A machine-readable electronic record of consent as defined in the ABDM Health Data Management Policy 2022, used for managing access to ABHA-linked health records.
ABDM Consent Artefact	A structured consent record generated under India's Ayushman Bharat Digital Mission framework, specifying the data requester, health information provider, purpose of access, data types, and validity period of consent.
Withdrawal of Consent	The revocation by a Data Principal of previously granted consent for a specific processing purpose, which must be as easy to execute as the giving of consent, in accordance with the DPDPA 2023.
Permitted Use	The lawful and intended uses of the Platform
Prohibited Conduct	Any act, omission, or pattern of behaviour that falls within the categories specified in this Document and which is expressly prohibited.
WCAG 2.1 Level AA	The Web Content Accessibility Guidelines version 2.1, Level AA, published by the World Wide Web Consortium (W3C), adopted as the digital accessibility standard for this Platform under the National Policy on Universal Electronic Accessibility 2013.

Description of the Platform and Services

take.health is an AI-Enabled Preventive Healthcare Platform owned and operated by TAKE Solutions Limited. The Platform is designed to empower individuals and healthcare providers with data-driven, technology-assisted tools for preventive health monitoring and early risk detection. The Services Available to Consumer Users are:

- AI-Powered Lab Report Analysis - Automated interpretation of uploaded pathology and diagnostic reports to identify parameters outside normal reference ranges and highlight patterns warranting attention
- Health Records storage- Store and Manage lab reports, doctor prescriptions and other healthcare records.
- Personalised Health Dashboard - A longitudinal view of your health parameters, trends, and AI-generated risk assessments over time
- Predictive Health Risk Identification - AI-based prediction of elevated risk for conditions such as hypertension, Type 2 diabetes, metabolic syndrome, and cardiovascular disease, based on your submitted health data
- Nutrition and Diet Management - Personalised dietary recommendations based on your health profile, metabolic indicators, and wellness goals
- Sleep Tracking and Wellness Monitoring - Analysis of sleep quality indicators and lifestyle data to support overall wellbeing
- Health Alerts and Preventive Notifications - Proactive alerts when health parameters require attention or when periodic health checks are advisable.

The Platform is under active development. TAKE Solutions may introduce new features, tools, or Service categories over time. Such new features will be governed by this Master Policy Document unless separate terms are notified. The Company reserves the right to modify, discontinue, or temporarily suspend any Service feature at any time with reasonable prior notice, except where emergency security or regulatory considerations require immediate action.

The Platform is NOT a Medical Device or Clinical Service

The take.health Platform is a preventive health information and monitoring tool. It is NOT a licensed medical device under the Medical Devices Rules, 2017. It does NOT provide clinical diagnoses, medical prescriptions, or treatment plans. It is NOT a substitute for professional medical consultation. AI-generated health insights produced by the Platform are informational in nature only. Nothing on the Platform constitutes the practice of medicine.

Eligibility, Registration, and Account

To register on and use the Platform, you must meet all of the following eligibility requirements at all times:

- You must be at least 18 years of age. Users below the age of 18 may access the Platform only with the verified consent of a parent or legal guardian, who assumes full responsibility for the minor's use of the Platform (see Section 4.7)
- You must be legally capable of entering into binding contracts under the Indian Contract Act, 1872 i.e., you must be of sound mind and not a person disqualified from contracting by any law to which you are subject
- You must be accessing the Platform from a jurisdiction where such access is lawful
- If registering as a Healthcare Provider, you must hold a valid, current registration with the National Medical Commission (NMC), relevant State Medical Council, or applicable professional regulatory body
- You must not have been previously suspended or permanently banned from the Platform

Access to the Platform's personalised features and AI health tools requires creation of a registered Account. When registering, you must:

- Provide accurate, complete, and current information in all fields of the registration form
- Not impersonate any other person or entity or provide false information regarding your identity, age, qualifications, or medical registration status
- Complete the identity verification process as required by the Platform from time to time
- Provide and maintain a valid email address and mobile number at which you can be reached for service notifications and security alerts
- For Healthcare Provider registrations: submit your Medical Council Registration Number, which will be verified against the NMC / State Council database as required under Telemedicine Practice Guidelines 2020

You are fully responsible for maintaining the confidentiality of your Account login credentials and for all activities that occur under your Account. You must:

- Choose a strong, unique password and not share it with any third party
- Enable multi-factor authentication (MFA) where the Platform offers or requires it
- Immediately notify us at support@takesolutions.com if you suspect any unauthorised access to or use of your Account
- Log out of your Account after each session, particularly when using shared or public devices

The Company will not be liable for any loss or damage arising from your failure to maintain account security. You accept that you are solely responsible for activities conducted under your Account credentials unless you have promptly notified us of a security breach.

Each individual may hold only one Account on the Platform. Creation of multiple accounts to circumvent restrictions, suspensions, or feature limitations is prohibited and may result in permanent termination of all associated accounts.

You agree to promptly update your Account information if it changes. The Company reserves the right to suspend or terminate any Account where information is found to be false, outdated, or misleading. Providing false medical information or fabricated health data on a health platform may have serious consequences for AI-generated outputs and ultimately for your health, you acknowledge and accept this risk.

Minors

Users under the age of 18 years may not independently register on the Platform. Any minor wishing to use the Platform must do so through an Account registered and managed by a parent or legal guardian. The parent or guardian:

- Is required to provide verifiable parental consent as mandated under Section 9 of the DPDPA 2023
- Assumes full legal responsibility for all activities conducted on the Platform under the minor's access
- Is responsible for supervising the minor's use of the Platform

If you become aware that a minor under the age of 18 has created an Account on the Platform without verified parental consent, please notify us immediately at support@takesolutions.com. We will deactivate the account and delete all associated data without delay.

AI-Powered Health Features: Scope, Use, and Limitations

The Platform uses artificial intelligence and machine learning systems to analyse your health data and generate personalised health insights, risk predictions, and wellness recommendations. You understand and agree that:

- AI-generated health insights are produced by statistical and probabilistic models trained on population-level health data. They represent patterns and associations in data not definitive clinical assessments
- No AI model achieves perfect accuracy. All AI-generated risk scores, predictions, and recommendations carry an inherent margin of error and are subject to the limitations of the training data, your submitted data quality, and the current state of AI science
- The accuracy of AI insights is directly dependent on the accuracy and completeness of the health data you submit. Inaccurate, incomplete, or misleading data inputs will produce unreliable outputs
- AI models may not account for rare conditions, individual genetic variations, atypical clinical presentations, or contextual factors that a qualified physician would consider in a face-to-face consultation

User Responsibility for AI Outputs

You acknowledge and agree that:

- You will not rely solely on AI-generated health insights for any clinical decision or medical action
- You will consult a qualified Registered Medical Practitioner before making any changes to medication, treatment, or significant lifestyle practices based on AI insights from this Platform
- You will exercise your own judgment and seek professional advice where any AI-generated insight causes you concern
- The Platform's AI tools are intended to complement, not replace, the doctor-patient relationship

Third-Party AI Services

The Platform may utilise third-party artificial intelligence application programming interfaces (APIs) and models to power certain health intelligence features. Where such third-party AI services are used:

- They are engaged under contractual data processing agreements that restrict them to processing your data solely for generating the health insights you have requested
- They are prohibited from using your personal health data for training their own models, advertising profiling, or any purpose other than service delivery
- Your data is transmitted to such services with appropriate encryption and security measures
- The identities of material third-party AI providers are disclosed in our Privacy Policy

Your Right to Human Review

If you believe that any AI-generated health insight is inaccurate, misleading, or has adversely affected you, you have the right to request a human review. Submit such requests to our Grievance Officer at Patient Health Data Management. We will acknowledge your request within 72 hours and provide a substantive response within 15 business days.

User Obligations and Acceptable Use

You represent and warrant that all health data, medical history, and personal information you submit to the Platform is, to the best of your knowledge, accurate, complete, and not misleading. You acknowledge that AI-generated health insights are only as reliable as the data you provide, and that submitting false or fabricated health data may result in inaccurate AI outputs that could be harmful to your own health or the health of others.

Your Account and the Services are for your personal, non-commercial use only. You may not use another person's Account or allow another person to use your Account.

You agree to use the Platform only for lawful purposes and in accordance with all applicable laws, regulations, and guidelines, including but not limited to the DPDPA 2023, IT Act 2000, Bharatiya Nyaya Sanhita 2023, Consumer Protection Act 2019, Drugs and Cosmetics Act 1940, and Telemedicine Practice Guidelines 2020.

The following conduct is strictly prohibited on the Platform and may result in immediate account suspension, permanent termination, and civil or criminal liability:

- Uploading, transmitting, or sharing any data or content that you do not have the legal right to process or share, including another person's health data without their explicit consent
- Attempting to access, tamper with, or interfere with the Accounts, data, or systems of other Users or the Company
- Using the Platform to impersonate a Registered Medical Practitioner or any other licensed healthcare professional without valid registration
- Attempting to reverse-engineer, decompile, disassemble, or otherwise derive the source code of the Platform's software or AI models
- Submitting malicious code, viruses, worms, Trojan horses, or any other harmful or disruptive content to the Platform
- Using automated bots, scrapers, crawlers, or data extraction tools to access the Platform or harvest data from it without prior written authorisation from the Company
- Attempting to bypass, circumvent, or disable any security, authentication, or access control feature of the Platform
- Using the Platform for any purpose that is deceptive, fraudulent, abusive, or that could damage the reputation or interests of the Company or other Users
- Sharing, publishing, or redistributing another User's personal or health data without their explicit, informed consent
- Using AI-generated health insights or Platform content to make false or misleading medical claims to third parties
- Accessing the Platform in any jurisdiction where such access is prohibited or where such use would violate applicable law

You accept and agree that all health, medical, dietary, and lifestyle decisions you make based on information or AI insights obtained from the Platform are your own decisions, made at your sole risk. The Company does not direct or control your health choices. You are encouraged to always seek the advice of qualified healthcare professionals before acting on any health-related information.

Medical Disclaimer

The take.health Platform is a preventive health information and technology tool. It is NOT a hospital, clinic, diagnostic laboratory, or licensed clinical establishment. It is NOT a registered medical device. Its AI systems are NOT licensed Registered Medical Practitioners. Nothing on this Platform constitutes a medical diagnosis, clinical assessment, prescription, or therapeutic intervention. Do not use this Platform in a medical emergency.

You acknowledge and agree:

- All content, features, and services on this Platform including AI-generated health insights, risk scores, wellness recommendations, and lab report analyses are provided for informational and preventive awareness purposes only. Nothing on this Platform constitutes, or should be construed as, medical advice, clinical diagnosis, medical treatment, or prescription of any kind.
- Use of the Platform except where you are actively engaged in a telemedicine consultation with an RMP does NOT create a doctor-patient relationship between you and the Company or any AI system.
- The Platform's AI systems are analytical tools. They do not examine you, cannot observe your clinical signs, and do not possess clinical judgment. In compliance with the Telemedicine Practice Guidelines 2020, AI systems on this Platform are expressly prohibited from providing clinical counselling or prescribing medicines.
- You must consult a qualified RMP: before making any change to your medication; if any AI-generated insight suggests a potential health risk; for the diagnosis, treatment, or management of any condition; if you are pregnant, nursing, or have pre-existing medical conditions; and for any health concern you consider serious, persistent, or worsening.
- THIS PLATFORM IS NOT AN EMERGENCY MEDICAL SERVICE.

Subscription Plans, Pricing, and Payment

The Platform may offer a combination of free access features and paid Subscription Plans. Specific features, pricing, and plan structures are described on the Platform's pricing page and are subject to change with advance notice.

Paid Subscription Plans grant Users access to premium features for the duration of the subscribed period. By purchasing a Subscription Plan, you agree to:

- Pay the subscription fee in full at the commencement of each billing period
- The automatic renewal terms applicable to your selected plan
- Provide accurate payment information and authorise the Company to charge the applicable fees
- Receiving a pre-debit notification at least 24 hours before any auto-renewal charge, in compliance with the Reserve Bank of India's e-mandate regulations for recurring transactions

All payment processing is handled by third-party PCI-DSS compliant payment gateway service providers. The Company does not store your full credit or debit card details on its servers. By making a payment, you agree to the terms and privacy policy of the applicable payment gateway. In the event of a payment dispute, you should first contact us at support@takesolutions.com before initiating a chargeback, as most disputes can be resolved expeditiously through our grievance process.

All subscription fees displayed on the Platform are inclusive of applicable Goods and Services Tax (GST) unless expressly stated otherwise. International users are solely responsible for any customs duties, import taxes, or other levies applicable in their jurisdiction.

The Company reserves the right to modify Subscription Plan pricing. If pricing changes affect your active subscription, you will be notified by email at least 30 days before the change takes effect. Continued use of the Subscription after the new pricing takes effect constitutes your acceptance of the revised fee.

You may cancel your Subscription at any time through your Account settings. Cancellation takes effect at the end of the current billing period. The Company's refund policy is:

- Subscriptions cancelled within 7 days of initial purchase and before any significant use of premium features may be eligible for a full refund upon request to support@takesolutions.com
- No refunds are provided for partial billing periods or for cancellations made after the initial 7-day window, except where required by applicable law.
- Refunds will be processed to the original payment method within 10 business days of approval
- Consumer rights under the Consumer Protection Act 2019 are preserved in all circumstances

User Content and Data

You retain full ownership of all Health Data and User Content you submit to the Platform. The Company does not claim ownership of your personal health information.

By submitting User Content to the Platform, you grant the Company a limited, non-exclusive, non-transferable licence to process, store, and use your User Content solely for the purpose of delivering the Services to you, as described in this Agreement. This licence terminates upon deletion of your data in accordance with Part III of this Document.

Your health data constitutes SPDI under the IT (SPDI) Rules, 2011 and personal data under the DPDPA 2023. By uploading health data, you explicitly consent to the Company processing such data for the purposes described in this Agreement. You may withdraw consent at any time, subject to the data retention obligations in Part III.

The Company implements industry-standard technical and organisational security measures to protect your Health Data, including encryption at rest and in transit, access controls, multi-factor authentication, and regular security audits. In the event of a personal data breach affecting your health data, the Company will notify the Data Protection Board of India and affected Users in compliance with the DPDPA 2023 and CERT-In Directions 2022.

Intellectual Property

All intellectual property in the Platform including the take.health brand, software, AI models and algorithms, databases, Platform architecture, UI/UX designs, content, AI Outputs, and all other proprietary technology etc. is owned by or licensed to TAKE Solutions Limited and is protected under the Copyright Act 1957, the Trade Marks Act 1999, the Patents Act 1970, and the Information Technology Act 2000. Nothing in this Agreement transfers any intellectual property rights to you.

All AI Outputs generated by the Platform are the proprietary output of the Company's technology. Users are granted a limited, personal, non-commercial, non-transferable licence to view and use AI Outputs solely

for their own personal health and wellness purposes. AI Outputs may not be reproduced, republished, redistributed, used for commercial purposes, or misrepresented as independent clinical findings or physician opinions.

As between you and the Company, you own your User-Generated Content. You grant the Company a limited licence to process your UGC for service delivery purposes as detailed in this Document. You represent and warrant that you have all rights necessary to submit your UGC and that doing so does not infringe any third party's rights.

The full Intellectual Property & User-Generated Content Policy including a complete description of Company IP ownership, AI Output rights, UGC licence terms, moral rights, IP infringement takedown procedures, and content removal processes is set out in this Master Policy Document.

You may not:

- Copy, reproduce, distribute, modify, create derivative works from, publicly display, or exploit any Platform content or technology without prior written consent from the Company
- Use any of the Company's trademarks, trade names, or logos without prior written authorisation
- Attempt to reverse-engineer or derive the source code of any software or AI model forming part of the Platform

As between you and the Company, you own your User Content. However, you represent and warrant that you have all necessary rights to submit your User Content to the Platform and that doing so does not infringe any third party's rights.

Privacy and Data Protection

The Company processes your personal data in accordance with the DPDPA 2023, the DPDP Rules 2025, the IT (SPDI) Rules 2011, and all other applicable data protection law. A full description of:

- What data we collect and why is set out in our Privacy Policy, available on the Platform
- How long we retain your data is set out in this Master Policy Document
- Your data rights including the right to access, correct, erase, and port your data are described in both the Privacy Policy and this Document
- How to exercise your data rights contact the Grievance Officer at support@takesolutions.com.

The Privacy Policy is incorporated into this Agreement by reference and forms part of the Agreement.

Third-Party Links and Services

The Platform may contain links to third-party websites, services, or resources. These links are provided for your convenience only. The Company has no control over the content or practices of third-party sites and does not endorse them. Your use of third-party sites is at your sole risk and subject to those sites' own terms and policies. The Company is not responsible for the accuracy, legality, or content of any third-party site.

Disclaimers and Limitation of Liability

The Platform and Services are provided on an "as is" and "as available" basis without warranties of any kind, express or implied, except as expressly required by law. To the fullest extent permitted by applicable

Indian law, the Company disclaims all warranties including implied warranties of merchantability, fitness for a particular purpose, accuracy, completeness, and non-infringement.

To the maximum extent permitted by applicable Indian law:

- The Company's total cumulative liability to you under this Agreement for all claims of any kind shall not exceed the greater of: (a) the total subscription fees paid by you to the Company in the 12 months preceding the event giving rise to liability; or (b) INR 10,000 (Indian Rupees Ten Thousand)
- The Company shall not be liable to you for any indirect, incidental, special, consequential, or punitive damages, including loss of data, loss of profits, loss of goodwill, or interruption of business, arising from your use of the Platform

Nothing in Section shall exclude or limit the Company's liability for:

- Death or personal injury caused by the Company's own proven gross negligence or wilful misconduct
- Fraud or fraudulent misrepresentation by the Company
- Any liability that cannot be excluded by law under the Consumer Protection Act 2019 or any other applicable Indian statute

The Company shall not be liable for any harm, injury, adverse health outcome, loss, or damage arising from reliance on AI-generated health insights in lieu of professional medical consultation, or from any clinical decision made by an RMP during a telemedicine consultation.

Indemnification

You agree to defend, indemnify, and hold harmless TAKE Solutions Limited and its officers, directors, employees, agents, licensors, and service providers from and against any and all claims, liabilities, damages, judgments, awards, losses, costs, expenses, or fees (including reasonable legal fees) arising out of or relating to:

- Your violation of any provision of this Master Policy Document
- Your violation of any applicable law, rule, or regulation
- Your User Content including any claim that your User Content infringes any third party's intellectual property, privacy, or other rights
- Your use of AI-generated health insights in a manner inconsistent with this Agreement or the Medical Disclaimer in Part II
- Any misrepresentation made by you to the Company, including misrepresentation of your identity, qualifications, or medical registration status
- Any harm caused to a third party arising from health information from the Platform that you shared with that third party in a misleading or irresponsible manner

Term, Suspension, and Termination

This Agreement commences on the date you first access the Platform or create an Account and continues until terminated in accordance with this Section.

You may terminate this Agreement at any time by closing your Account through your Account settings or by contacting support@takesolutions.com. Account closure is subject to the data retention obligations.

The Company reserves the right to suspend or terminate your Account and access to the Platform, with or without prior notice, if:

- You breach any provision of this Agreement and fail to remedy the breach within 7 days of notice (where the breach is capable of remedy)
- You engage in any prohibited conduct
- We are required to do so by applicable law, a court order, or regulatory direction
- Your Account has been inactive for more than 36 consecutive months (with prior notice)

Upon termination, your right to access and use the Platform ceases immediately. Provisions of this Agreement that by their nature should survive termination shall survive. Data handling upon account closure is governed by this Document.

Force Majeure

The Company shall not be in breach of this Agreement, nor liable for any delay or failure to perform its obligations, if such delay or failure results from a Force Majeure Event. Force Majeure Events include, without limitation: acts of God, natural disasters, epidemics, pandemic declarations, war, terrorism, government orders or regulations, widespread internet outages, large-scale cyberattacks or DDoS events, power failures, or any other circumstance beyond the Company's reasonable control.

Where a Force Majeure Event affects the Company's ability to provide the Services, the Company will notify affected Users as soon as reasonably practicable and will use commercially reasonable efforts to resume normal service delivery. If a Force Majeure Event continues for a period exceeding 30 consecutive days, either party may terminate the subscription for the affected period and the User shall be entitled to a pro-rata refund for the period of unavailability.

Grievance Redressal

In compliance with Rule 3(1)(b) of the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 and Section 13 of the DPDPA 2023, the Company has appointed a Grievance Officer to address User complaints and concerns.

Grievance Officer Contact Details

Name: Parmeshwar Dhanghare
Designation: Grievance Officer & Data Protection Officer
Organisation: TAKE Solutions Limited | take.health Platform
Email: support@takesolutions.com
Postal Address:
Phone:
Availability: Monday to Friday, 10:00 AM to 6:00 PM IST

Resolution Timeline

Stage	Timeline
Acknowledgment of complaint	Within 24 hours of receipt (IT Intermediary Rules 2021, Rule 3(2)(a))

Substantive resolution	Within 15 days of receipt (IT Intermediary Rules 2021, Rule 3(2)(b))
Response to data rights requests (DPDPA)	Within 30 days of receipt
Response to AI human review requests	Within 15 business days of receipt
Response to billing / refund complaints	Within 10 business days of receipt

Governing Law and Dispute Resolution

This Master Policy Document and all disputes arising from or in connection with it are governed by and construed in accordance with the laws of India, without regard to conflict of law principles.

In the event of a dispute, controversy, or claim arising out of or relating to this Agreement, the parties agree to first attempt resolution in good faith through direct negotiation. If unresolved within 30 days of notice, the dispute shall be referred to mediation before a mutually agreed mediator. Mediation shall be conducted in Chennai, Tamil Nadu, India.

If mediation fails within 60 days of initiation, the dispute shall be finally resolved by binding arbitration in accordance with the Arbitration and Conciliation Act, 1996, as amended. The seat of arbitration shall be Chennai, Tamil Nadu, India. The arbitration shall be conducted in English. The arbitral award shall be final and binding.

Notwithstanding the arbitration clause, either party may seek urgent interim relief from the courts at Chennai, Tamil Nadu, India, which shall have exclusive jurisdiction over all matters arising from this Agreement that are not subject to arbitration or where urgent relief is required.

Amendments to This Document

The Company reserves the right to update, modify, or revise this Master Policy Document at any time. When material changes are made:

- Users will be notified by email at least 15 days before the changes take effect for all Parts
- A prominent notice will be displayed on the Platform
- The "Last Reviewed" date at the top of this Document will be updated
- Where changes involve new processing of sensitive health data or material changes to data retention periods, fresh consent will be sought as required under the DPDPA 2023

Given the rapidly evolving nature of AI regulation and technology section of this Document is subject to review at minimum every 6 months, or more frequently upon: (a) introduction of a new AI system category on the Platform; (b) issuance of new regulatory guidance on AI in healthcare; or (c) material changes to third-party AI service arrangements. Users will be notified of all material updates with the same 15-day advance notice applicable to all other Parts.

Your continued use of the Platform after changes take effect constitutes your acceptance of the revised Document.

Severability

If any provision of this Master Policy Document is found by a court or arbitrator of competent jurisdiction to be invalid, unlawful, or unenforceable in any respect, such provision shall be modified to the minimum

extent necessary to make it enforceable, or severed if modification is not possible, without affecting the validity and enforceability of all remaining provisions.

General Provisions

This Master Policy Document, together with the Privacy Policy and any executed MSA/DPA, constitutes the entire agreement between you and the Company regarding your use of the Platform and supersedes all prior agreements, understandings, and communications.

No failure or delay by the Company in exercising any right, power, or remedy shall operate as a waiver. A waiver of any specific breach shall not constitute a waiver of any subsequent breach.

You may not assign, transfer, or sub-licence any of your rights or obligations under this Agreement without the prior written consent of the Company. The Company may assign its rights and obligations to any successor entity or acquirer of its business with reasonable advance notice to you.

Notices from the Company to you will be delivered by email to your registered address or by prominent notice on the Platform. Notices from you to the Company must be delivered to support@takesolutions.com or to the Company's registered office in Chennai.

Nothing in this Agreement creates any agency, partnership, joint venture, employer-employee, or franchisor-franchisee relationship between you and the Company.

This Document is drafted in English. In the event of any conflict between the English version and any translation, the English version shall prevail.

SECTION II: MEDICAL DISCLAIMER & SCOPE-OF-SERVICE DISCLOSURE

The take.health Platform is a preventive health information and technology tool. It is NOT a hospital, clinic, diagnostic laboratory, or licensed clinical establishment under the Clinical Establishments Act 2010. It is NOT a registered medical device under the Medical Devices Rules 2017. Its AI systems are NOT licensed Registered Medical Practitioners. Nothing on this Platform constitutes a medical diagnosis, clinical assessment, prescription, or therapeutic intervention.

Purpose and Legal Foundation

This Medical Disclaimer and Scope-of-Service Disclosure is published by TAKE Solutions Limited in compliance with applicable Indian law and professional medical regulation. It is an integral, non-severable component of the Master Policy Document and must be read alongside the Privacy Policy, AI Transparency Policy, and all other policies published on the Platform.

What take.health Is and What It Is Not

take.health is an AI-Enabled Preventive Healthcare Platform designed to empower individuals and healthcare providers with data-driven, technology-assisted tools for preventive health monitoring and early risk awareness. Every feature of the Platform falls within this informational and preventive scope none extends to clinical services.

Platform Feature	What It Actually Is
Lab Report Analysis	An AI-assisted information tool that reads uploaded pathology reports, identifies parameters outside standard population reference ranges, and presents this data visually. It does **NOT** diagnose disease. Reference ranges are population-level statistical norms; individual deviation is clinically significant only when interpreted by an RMP in the context of your full clinical picture.
Predictive Risk Scores	A statistical probability indicator derived from your submitted health data, showing population-level likelihood of elevated risk for certain common lifestyle conditions. It is **NOT** a diagnosis. A high risk score indicates a statistical pattern not a certainty. A low score does not guarantee absence of a condition.
Personalised Health Dashboard	A data visualisation and longitudinal tracking tool that displays your health parameters, trends, and AI-generated risk indicators over time. It is an awareness interface not a clinical monitoring system.
Nutrition and Diet Recommendations	General wellness-oriented dietary guidance generated from your self-reported health profile and goals. It is **NOT** clinical medical nutrition therapy and **NOT** a dietitian's prescription. Individuals with medical conditions affected by diet must consult a qualified dietitian or physician.
Sleep and Wellness Tracking	Monitoring of self-reported and wearable-linked sleep quality indicators and lifestyle data for personal awareness. Sleep disorder diagnosis requires clinical evaluation by a qualified physician or sleep specialist.
Mental Wellness Indicators	Self-assessment prompts that generate general wellness awareness indicators. These are **NOT** psychiatric assessments and do **NOT** diagnose any mental health condition. All mental health concerns must be evaluated by a qualified mental health professional.
Preventive Health Alerts	Automated notifications generated when your data patterns reach predefined thresholds, suggesting that a health parameter warrants attention or a check-up may be advisable. These are prompts to seek professional review **NOT** clinical diagnoses or treatment recommendations.
Heath care Records storage	You can store your medical reports, doctor prescriptions and other healthcare records and can access it any time anywhere through take.health.

What the Platform Definitively Is NOT

These Exclusions Are Legally Binding and Non-Negotiable

The take.health Platform is **NOT**: a hospital or clinical establishment; a diagnostic laboratory; a pharmacy or drug dispensary; a licensed medical device; an emergency medical service; a mental health crisis service; a telemedicine service provider (it facilitates access to independent RMPs); a provider of medical diagnoses, prescriptions, or clinical treatment plans; a provider of clinical nutrition therapy; a provider of psychiatric or psychological therapy.

AI Cannot Replace Clinical Judgment

The Board of Governors of the Medical Council of India has stated in the Telemedicine Practice Guidelines 2020: *"Technology platforms based on AI and machine learning are not allowed to counsel the patients or prescribe any medicines; only a doctor can counsel and prescribe medicines."* The Guidelines further state: *"AI, IoT, data science-based decision support systems etc. can assist and support a doctor on patient*

evaluation, diagnosis or management, but the final prescription or counselling has to be directly delivered by the doctor."

This is not a guideline the Company has chosen to follow it is a **legal mandate**. The Company's AI systems are built to comply with it in full.

In practical terms, this means that every AI-generated output on the take.health Platform regardless of how specific, personalised, or data-rich it may be, is an informational data presentation only. It is not, and cannot be, a clinical act. The clinical act, diagnosis, counselling, prescription, can only be performed by a licensed human Registered Medical Practitioner in an active doctor-patient relationship.

Specific Disclaimers by Feature

AI Output	What You Must Understand Before Acting On It
"Your Haemoglobin is below normal range"	This is a data observation. It is **NOT** a diagnosis of anaemia or any other condition. Haemoglobin variation has many causes physiological and pathological. An RMP must evaluate this finding in the context of your symptoms, clinical history, other parameters, and physical examination before any clinical conclusion is drawn.
"You have a moderate-high risk score for Type 2 Diabetes"	This is a statistical probability flag, not a diagnosis. It means your data pattern resembles patterns seen in populations with elevated diabetes risk. It requires clinical confirmation through appropriate testing and medical evaluation not self-management based solely on this score.
"Consider reducing sodium intake"	This is general wellness guidance. If you have hypertension, kidney disease, heart failure, or any other condition that makes sodium management clinically significant, this guidance must be validated and quantified by a qualified physician or clinical dietitian before you act on it.
"Your sleep quality score is poor"	This is a self-reported data metric. It does not diagnose insomnia, sleep apnoea, or any sleep disorder. Clinical diagnosis of sleep disorders requires physician evaluation and may require a formal sleep study.
"Your stress indicator is elevated"	This is a data pattern flag. It does not diagnose anxiety, depression, burn

SECTION III: DATA RETENTION & DELETION POLICY

Data Categories, Retention Periods, and Legal Basis

The following table is the definitive retention schedule for all categories of personal data processed on the take.health Platform. It specifies the retention period, the legal basis for that period, whether the period can be shortened on user request, and the deletion method applied.

Consumer User Data

Data Category	Retention Period	Legal Basis / Reason	Deletion on Request?
Account registration data (name, email,	Duration of active account + 3 years after account closure	Legal obligation (IT Act S.67C; Consumer Protection Act); Limitation Act 1963	Partial core identifiers retained for 3 years post-closure for legal defence; can

mobile, DOB, gender)		defence of potential civil claims	be anonymised on request within that period
Login credentials (hashed password, 2FA records)	Duration of active account; deleted within 30 days of account closure	Operational necessity during active use; no legal basis for retention post-closure	Yes deleted upon account closure
Health records medical history, chronic conditions, medications	Duration of active account + 3 years post-closure (minimum)	IMC Regulations 2002 (Regulation 1.3.2) minimum 3-year medical record retention; Consumer Protection Act claims defence	Partial minimum 3-year post-closure retention is a legal obligation. Earlier deletion may be possible after legal review.
Uploaded lab reports and pathology results [SPDI]	Duration of active account + 3 years post-closure	IMC Regulations 2002 (minimum medical record retention); ABDM Health Data Management Policy where ABHA-linked	Partial 3-year minimum applies; user may request review on a case-by-case basis
Biometric measurements (blood pressure, glucose, BMI, etc.) [SPDI]	Duration of active account + 3 years post-closure	Medical record retention obligation; longitudinal health data may be needed for medico-legal proceedings	Partial as above
AI-generated health reports, risk scores, and wellness assessments	Duration of active account + 3 years post-closure	Company's potential liability exposure if clinical harm is alleged based on AI output; Limitation Act 1963	Partial retention for 3 years post-closure for liability defence; user may request review
Sleep and wellness tracking data [SPDI]	Duration of active account + 3 years post-closure	Health data retention obligation	Partial as above
Dietary intake logs and nutrition data [SPDI]	Duration of active account + 2 years post-closure	Operational necessity during account; 2-year post-closure period for potential claims defence	Yes after 2 years post-closure

Mental wellness and stress indicators [SPDI]	Duration of active account + 3 years post-closure	Sensitive health data mental health record retention obligations; Limitation Act	Partial 3-year minimum applies
Family medical history (if provided) [SPDI]	Duration of active account + 3 years post-closure	Medical record retention; high sensitivity of genetic risk data	Yes user may request deletion with written acknowledgment of implications for AI output accuracy

Technical and Operational Data

Data Category	**Retention Period**	**Legal Basis / Reason**	**Deletion on Request?**
Server logs and access logs (IP address, session data, page visits)	90 days from generation	CERT-In Directions 2022 cybersecurity incident response; IT Act S.67C; operational security monitoring	No security and legal obligation during 90-day period; auto-deleted thereafter
Error and crash reports	30 days from generation	Operational necessity for debugging and platform stability; no legal obligation for longer retention	Auto-deleted after 30 days
Device and browser data collected during sessions	90 days from collection	Security monitoring and fraud prevention; auto-deleted thereafter	No during 90-day period; auto-deleted after
API call logs (third-party AI service interactions)	90 days from generation	Security monitoring; CERT-In Directions 2022; contractual audit trail requirements with third-party providers	No during 90-day period
Consent records (timestamp, version of notice presented, user action)	Duration of processing activity + 5 years	DPDPA 2023 evidence of valid consent is required to demonstrate compliance; Data Protection Board enforcement	No consent records must be retained to prove lawful processing
Cookie consent records	3 years from the date of consent	Evidence of compliance with	No during 3-year period

		DPDPA 2023 consent requirements	

Communication and Support Data

Data Category	Retention Period	Legal Basis / Reason	Deletion on Request?
Customer support communications (emails, chat logs, tickets)	3 years from date of communication or resolution	Consumer Protection Act 2019 ability to demonstrate service standard and respond to complaints; Limitation Act defence of civil claims	Partial retained for minimum 3 years for legal defence
Grievance and complaint records	5 years from date of resolution	IT Intermediary Rules 2021 records of complaint resolution; Consumer Protection Act potential regulatory scrutiny	No regulatory compliance obligation
Feedback and survey responses	2 years from submission	Product improvement; anonymised after 2 years if retained longer	Yes can request deletion; responses anonymised after 2 years regardless
Marketing communications (sent emails, notification logs)	3 years from the date of sending	Evidence of compliance with consent-based marketing obligations; Consumer Protection Act	Yes opt-out processed within 7 business days; historical records retained for compliance

Financial and Payment Records

Data Category	Retention Period	Legal Basis / Reason	Deletion on Request?
Subscription transaction records (order IDs, amounts, dates not full card details)	8 years from end of the financial year in which the transaction occurred	Income Tax Act 1961 (S.128) statutory retention of financial records; Companies Act 2013 statutory books of account	No statutory legal obligation; cannot be deleted earlier
GST invoices and tax records	8 years from end of relevant financial year	Goods and Services Tax Act 2017	No statutory legal obligation

		mandatory retention of tax invoices	
Payment gateway tokenised reference (not card numbers those are not stored)	8 years from transaction date	Financial record retention requirement; fraud investigation purposes	No during retention period
Refund and dispute records	8 years from date of refund or resolution	Consumer Protection Act 2019; Income Tax Act; potential litigation	No during retention period

Data Lifecycle Management

The Company implements a structured data lifecycle management process to ensure that retention periods are actively enforced not merely documented. The following describes how this process operates:

- During the period when your Account is active and you are using the Platform, your data is stored in the Company's primary production databases and cloud infrastructure, with full access controls, encryption at rest and in transit, and regular backups. Data in this phase is actively used to deliver Services.
- When the primary purpose for which data was collected has been fulfilled (e.g., the Platform feature is no longer in use) or when your Account is closed, data enters the post-purpose retention phase. During this phase:
    - Data is migrated to a restricted access archive separated from production systems
    - Access to archived data is limited to legal, compliance, and security teams and only for the specific purpose justifying the retention
    - Archived data is not used for AI model training, analytics, marketing, or any operational purpose
    - The data remains encrypted and subject to all security controls

Deletion / Destruction Phase

When the applicable retention period expires including any legally required minimum period data is permanently and securely destroyed through the following methods:

- Cloud-stored data: Cryptographic erasure (key destruction) followed by secure overwrite procedures in compliance with NIST SP 800-88 guidelines for media sanitisation
- Database records: Logical deletion followed by physical purge from all backup systems within the next scheduled backup rotation cycle
- Physical media (where applicable): Destruction through secure shredding, degaussing, or physical destruction by a certified data destruction vendor
- Third-party processor data: The Company instructs all Data Processors to delete user data upon expiry of the applicable retention period, and obtains written confirmation of deletion

Retention Period Review Cycle

Retention schedules are reviewed by the Data Protection Officer (DPO) at minimum annually, and following any of these events:

- Amendment of any applicable law or regulation affecting minimum retention requirements
- Introduction of a new data category or processing purpose on the Platform
- Material change in the Company's data processing arrangements with third parties
- A regulatory inquiry or audit that reveals gaps in retention practices

Your Right to Request Deletion

Section 12 of the DPDPA 2023 grants you the right to request erasure of your personal data. This right is real and important and it exists alongside the Company's legal obligation to retain certain data for minimum periods. This section explains how deletion requests work in practice.

- Option A: Log into your account, navigate to Settings > Privacy > Data Deletion, and submit a deletion request through the self-service portal
- Option B: Email support@takesolutions.com with the subject line "Data Deletion Request" and provide your registered email address and a description of what you would like deleted
- Option C: Contact the Grievance Officer in writing at support@takesolutions.com

What Happens When You Submit a Deletion Request

Stage	**Timeline and Action**
Acknowledgment	Within 72 hours of receipt we will acknowledge your request and assign a reference number.
Eligibility Assessment	Within 7 business days we will assess which data categories you have requested can be deleted immediately and which are subject to minimum legal retention obligations.
Partial or Full Deletion Confirmation	Within 30 days we will confirm which data has been deleted, which data is subject to a legal retention hold and why, and the date on which legally-held data will be deleted.
Deletion of Legally-Held Data	On the applicable expiry date data subject to minimum legal retention will be deleted automatically when the retention period expires, without requiring you to submit a new request.

What We Will and Will Not Delete on Request

Data We Will Delete on Request (Subject to Confirmation of No Legal Hold)	**Data We Cannot Delete Immediately Due to Legal Obligation**
Active account data and profile information | Current health logs and wellness tracking data | AI-generated reports and insights | Marketing communication records | Dietary and sleep logs |	Medical records minimum 3-year IMC Regulations retention | Financial and payment records 8-year statutory retention | Consent records 5-year DPDPA evidence retention | Active or ongoing legal dispute records Limitation Act retention | Grievance and complaint records IT Rules 2021 retention | CERT-In mandated security logs

Device and session data | Cookies and tracking data	

What Happens to Your AI Outputs After Deletion

If you request deletion of your health data inputs (lab reports, biometric data, medical history), the AI-generated insights derived from that data are no longer meaningfully associated with real underlying data. However, the AI-generated reports themselves may be retained for the applicable post-purpose period for liability defence purposes, in an access-restricted archive. They will not be used for any operational or commercial purpose during this period.

Account Closure and Data Handling

When you close your account on the take.health Platform, the following data handling process is applied:

Immediate Actions on Account Closure

- Your account access is immediately deactivated you will not be able to log in
- Your profile data and health dashboard are removed from the active user-facing Platform
- All active recurring subscription charges are cancelled
- Your data is migrated from the active production database to the restricted-access retention archive

Post-Closure Data Management

- Data in the retention archive is held only for the periods specified in Section 4 of this Policy
- You may request a copy of your data at any time within the retention period by emailing support@takesolutions.com
- You may request the deletion of specific data categories subject to the provisions of Section 5 above
- Upon expiry of all applicable retention periods, all remaining data is permanently and securely destroyed

Requesting Your Data Before Deletion (Right to Data Portability)

Before closing your account or requesting deletion, you may request a complete download of your personal data in a structured, machine-readable format. This includes all health records, uploaded documents, AI-generated reports, and account information. Submit such requests to support@takesolutions.com. Data will be provided within 30 days in PDF or machine-readable format.

Retention of Data for Legal Proceedings

Where the Company becomes aware through a court order, a legal notice, a regulatory investigation, or internal identification of a potential legal dispute that specific personal data may be relevant to legal proceedings, the Company may apply a legal hold to that data, overriding the standard retention schedule.

Under a legal hold:

- The data identified as potentially relevant is preserved in its current state and not deleted, modified, or transferred until the legal hold is lifted
- Access to legally held data is restricted to authorised legal, compliance, and senior management personnel

- You will be notified if a legal hold has been placed on your data, unless such notification is prohibited by a court order or applicable law
- When the legal proceedings are concluded and no further retention is required, the legal hold will be lifted and standard retention schedules will resume

Third-Party Data Processors and Retention Obligations

All third-party service providers (Data Processors) engaged by the Company including cloud infrastructure providers, AI API providers, analytics tools, and customer support platforms are contractually required to:

- Implement data retention and deletion practices that are at least as stringent as those described in this Policy
- Retain personal data only for the period necessary to deliver the specific service contracted
- Delete or return all personal data upon termination of the service relationship or upon the Company's written instruction
- Provide the Company with written confirmation of deletion upon request
- Notify the Company immediately if they are unable to comply with a deletion instruction for any reason

The Company conducts periodic reviews of its Data Processors' retention and deletion practices as part of its data protection compliance programme.

Cross-Border Data Retention

Where personal data is stored by third-party cloud providers or AI service providers in jurisdictions outside India, the same retention periods specified in this Policy apply. The Company's Data Processing Agreements with overseas providers include:

- Explicit adoption of the retention periods specified in this Policy
- Obligation to delete data at the end of the applicable retention period even without a specific deletion instruction from the Company
- Prohibition on retaining Indian user data for purposes of the overseas provider's own operations beyond the period specified
- Right of the Company to audit retention compliance

SECTION IV: AI TRANSPARENCY & ALGORITHMIC DISCLOSURE POLICY

Our Commitment on AI Transparency

TAKE Solutions Limited commits to deploying AI on the take.health Platform only in ways that are: honest and transparent with Users; explainable at a level meaningful to a non-technical health consumer; subject to human oversight and review; validated for accuracy and fairness across user groups; protective of user privacy and autonomy; and compliant with all applicable Indian law and regulatory guidance. We will never present AI-generated content as human expert opinion, and we will never use your health data to train AI models without your specific, separate, and informed consent.

Purpose and Regulatory Basis

This AI Transparency and Algorithmic Disclosure Policy ("**AI Policy**") is published by TAKE Solutions Limited in compliance with the Company's obligations to be transparent about the use of artificial

intelligence on the take.health Platform. The use of AI in healthcare is a high-consequence application meaning errors or opacity in AI outputs can directly affect Users' health decisions, clinical outcomes, and fundamental rights.

AI Systems Deployed on the Platform

The take.health Platform employs multiple categories of AI systems to deliver its services. The following table discloses each system category, its function, the data it processes, and the nature of its output. This disclosure is made at a level consistent with transparency obligations while protecting legitimate proprietary information about model architecture and training methodology.

AI System Registry

AI System Category	Function, Input Data, and Output Description
Natural Language Processing (NLP): Lab Report Interpretation	**Function:** Reads uploaded pathology and diagnostic reports in clinical text format. **Input:** Scanned or digital lab reports (PDF, image, text) uploaded by the User. **Output:** Structured extraction of parameter names, measured values, units, and standard reference ranges; flags parameters outside reference ranges. **Does NOT** interpret clinical significance.
Predictive Risk Analytics: Lifestyle Disease Risk Modelling	**Function:** Assesses statistical probability of elevated risk for lifestyle conditions. **Input:**Longitudinal health parameters, lab values, biometric data, family history, lifestyle indicators submitted by the User. **Output:** Risk probability scores for conditions such as Type 2 Diabetes, hypertension, metabolic syndrome, and cardiovascular risk. Outputs are probabilities not diagnoses.
Personalised Recommendation Engine: Wellness Guidance	**Function:** Generates personalised wellness suggestions. **Input:** User health profile, risk scores, self-reported goals, dietary logs, activity data. **Output:** Tailored nutritional, sleep hygiene, physical activity, and wellness recommendations for informational guidance only.
Anomaly Detection: Preventive Alert System	**Function:** Identifies statistically significant deviations in health parameter trends over time. **Input:**Longitudinal time-series health data from User submissions and connected devices. **Output:**Preventive alerts triggered when parameters cross predefined thresholds, suggesting the User seek professional review. Does not diagnose.
AI-Assisted Clinical Decision Support: B2B Healthcare Provider Tools	**Function:** Presents AI-processed patient health data patterns to Registered Medical Practitioners to supplement (not replace) clinical review. **Input:** Patient health data shared with the patient's consent. **Output:** Structured data summaries, flagged parameters, and pattern highlights to assist the RMP's independent clinical judgment. All clinical decisions remain exclusively with the RMP.
Large Language Model (LLM) Integration: Health Information Interface	**Function:** Powers conversational health information queries, report explanations, and wellness guidance interactions. **Input:** User queries and contextual health data provided in the session. **Output:** Informational responses to health questions expressly not clinical advice. Users are informed at the point of interaction that they are engaging with an AI system.

How AI Generates Health Insights: Process Transparency

Understanding how AI produces its outputs is essential for Users to correctly interpret and appropriately rely on them. The following is a plain-language explanation of the AI process on this Platform.

The Data-to-Insight Pipeline

- **Step 1 - Data Collection:** You submit health data through registration, manual entry, lab report uploads, connected device integration, or ABHA linkage. The quality and accuracy of AI outputs is directly dependent on the quality and accuracy of this input data
- **Step 2 - Data Structuring:** AI systems process your submitted data into a structured format converting raw lab report text into machine-readable parameters, standardising units, and organising longitudinal data into time-series sequences
- **Step 3 - Pattern Matching and Risk Modelling:** Predictive models compare your structured health data against statistical patterns derived from population-level health datasets. The model identifies which risk profile your data most closely resembles and assigns a probability score
- **Step 4 - Insight Generation:** Based on pattern analysis, the system generates personalised insights flagged parameters, risk scores, and wellness recommendations calibrated to your specific health profile
- **Step 5 - Output Presentation:** AI-generated insights are presented in your dashboard with contextual explanations, reference information, and a prominent reminder that outputs are informational and require professional clinical interpretation for any medical action

What AI Models Do NOT Do

- They do not physically examine you, they analyse only the data you provide
- They do not access your historical medical records from external sources without your explicit consent and active linkage
- They do not consider clinical context, symptoms, or observations that you have not submitted as data
- They do not make final clinical decisions that role is reserved exclusively for qualified human clinicians
- They do not adapt prescriptions or dosage recommendations this is beyond their permitted scope under the Telemedicine Guidelines 2020

Think of the Platform's AI as a highly capable data analyst one that can read thousands of lab reports, identify statistical patterns, and flag what merits attention faster than any individual could. But it is an analyst, not a clinician. It sees the numbers; it cannot examine you, speak to you, understand your pain, or apply decades of clinical training. Only a qualified doctor can do that. The AI's role is to ensure no data point goes unnoticed the doctor's role is to tell you what it means for you.

Accuracy, Limitations, and Known Constraints

Accuracy Limitations

- No AI model in healthcare currently achieves perfect accuracy. All predictive models carry false positive rates (flagging risk where none exists) and false negative rates (missing risk that does exist). These rates vary by condition, population group, and data quality
- Predictive risk models are trained on specific population datasets. Where your demographic, genetic, or clinical background differs materially from the training population, the model's predictive accuracy may be reduced
- AI lab report interpretation is designed to identify parameters outside standard population reference ranges. Reference ranges themselves are statistical constructs they do not define normal for every individual
- AI systems can exhibit performance differences across demographic groups including age, gender, ethnicity, and socioeconomic status, depending on the composition of their training data. The Company actively works to assess and mitigate any such disparities

Data Quality Dependencies

- AI outputs are only as reliable as the data you submit. Inaccurate, outdated, or fabricated data will generate unreliable insights
- Wearable device data carries its own accuracy limitations consumer-grade devices do not meet medical-grade sensor standards. AI insights derived from wearable data should be interpreted with this in mind
- Uploaded lab reports from different laboratories may use different reference ranges, units, and methodologies. Where the AI cannot reliably parse a specific report format, it will indicate this limitation to the User

Scope Constraints

- The Platform's AI is designed for preventive health monitoring of common lifestyle conditions. It is not designed to identify rare diseases, complex multi-system conditions, or atypical clinical presentations
- AI systems on this Platform have not been validated as clinical diagnostic tools under the Medical Devices Rules 2017. They are informational tools, not diagnostic instruments
- AI predictions represent statistical risk at a population level they cannot predict individual health outcomes with certainty

AI health insights on this Platform are a starting point not an endpoint. When the AI flags something, treat it as a prompt to seek professional assessment not as a clinical verdict. When the AI gives you a low risk score, do not use it as grounds to avoid routine health check-ups or to delay seeking care for symptoms.

Automated Decision-Making Disclosure

In compliance with the DPDPA 2023 and MeitY's AI Advisory on responsible AI in high-consequence sectors, this section discloses all automated decision-making processes on the Platform that produce outputs affecting Users.

Automated Processes on the Platform

Automated Process	Nature of Output and Its Effect on You

Lab report parameter flagging	Automated identification of out-of-range parameters. Effect: You receive a visual flag and explanation. **Action required:** Seek RMP consultation before drawing clinical conclusions.
Predictive risk score generation	Automated risk probability calculation based on your health data profile. Effect: You see a risk category and score. **Action required:** Discuss with an RMP do not self-diagnose or self-treat.
Preventive health alerts	Automated notifications triggered by threshold breaches in your health data. Effect: You receive an alert suggesting professional review. **Action required:** Consult a doctor for clinical assessment.
Wellness recommendation generation	Automated personalised suggestions for nutrition, sleep, and lifestyle. Effect: You receive guidance. **Action required:** Validate with a qualified professional before acting on any suggestion that could affect a medical condition.
Dashboard health trend analysis	Automated charting and trend identification across your longitudinal health data. Effect: You see visual trends over time. These are data representations not clinical assessments.

What is NOT Automated

- No clinical diagnosis is automated. diagnoses can only be made by a qualified human RMP
- No prescription or medication recommendation is automated this is prohibited under the Telemedicine Guidelines 2020
- Telemedicine consultations are conducted by human RMPs. AI only assists with pre-consultation data preparation and post-consultation summaries
- Grievance resolution and data rights responses involve human review

Human Oversight and Accountability

TAKE Solutions Limited maintains the following human oversight mechanisms over all AI systems operating on the Platform, in line with the accountability requirements of the MeitY AI Advisory and the IndiaAI Mission principles:

Clinical Validation Framework

- All AI models deployed for health risk prediction and lab report analysis are validated against clinical benchmarks before deployment, with qualified healthcare professionals reviewing model outputs against clinically established standards
- Post-deployment monitoring tracks model performance over time, including analysis of user-reported discrepancies between AI outputs and clinical assessments
- Models are reviewed and updated on a defined schedule to incorporate new clinical guidelines, updated reference standards, and improvements in AI methodology

You have the right to request human review of any AI-generated health insight that you believe to be inaccurate, concerning, or that has adversely affected you. Upon receiving such a request, the Company will:

- Acknowledge your request within 72 hours
- Escalate for review by a qualified member of the Company's clinical advisory team

- Provide a substantive response within 15 business days
- Where appropriate, update your profile or the AI output based on the review findings

To request human review: email support@takesolutions.com with the subject line "AI Output Review Request"

AI Governance Structure

- The Company maintains an internal AI Ethics and Governance framework that defines standards for AI model selection, validation, monitoring, and sunset
- The Company's data protection obligations are overseen by a designated Data Protection Officer (DPO) who also has oversight responsibility for AI-related data processing
- Material changes to AI systems that affect the nature or accuracy of health outputs will be communicated to Users through the amendment process.

Third-Party AI Service Providers

The take.health Platform may integrate third-party AI APIs and services to power certain health intelligence features. This integration is disclosed in compliance with the DPDPA 2023 transparency requirements.

Disclosure Framework for Third-Party AI

- Where the Platform uses third-party AI models to process User health data and generate insights, this is disclosed in the relevant feature interface
- All third-party AI providers are engaged under written Data Processing Agreements (DPAs) that: (a) restrict them to processing User data only for the purpose of generating the specific health insight requested; (b) prohibit use of User data for the AI provider's own model training; (c) prohibit use of User data for advertising profiling or any other purpose; and (d) mandate deletion of User data after the processing purpose is fulfilled
- Third-party AI providers must implement security standards at least equivalent to those required of the Company under the DPDPA 2023
- The Company remains the Data Fiduciary under DPDPA 2023 for all personal data processing including processing conducted by third-party AI providers on the Company's instructions

User Disclosure at Point of Interaction

- The Platform will display a clear, prominent indicator on any feature or interface where AI is generating the content or response the User is receiving
- The Platform will never present AI-generated health content as the opinion or recommendation of a human healthcare professional
- The Platform will disclose in the feature interface when a large language model (LLM) or generative AI system is powering a conversational interaction

Third-Party Provider Identities

The identities of specific third-party AI model providers engaged by the Platform are disclosed in the Privacy Policy and updated when material changes occur. The Company will not name individual AI providers in a manner that implies endorsement of AI-generated health outputs as clinically validated unless specifically validated and authorised.

Data Used for AI Processing

This section explains which of your data is processed by AI systems, for what purpose, and under what legal basis.

Your Data Category	AI Processing Applied and Purpose
Uploaded lab reports	NLP extraction of parameter values and units; comparison against reference ranges; pattern integration into risk models. **Purpose:** Lab report analysis. **Legal basis:** Explicit consent under DPDPA 2023, Section 6
Biometric measurements (BMI, blood pressure, glucose)	Input into risk prediction models; trend analysis; alert threshold monitoring. **Purpose:** Risk prediction and preventive alerts. **Legal basis:** Explicit consent
Medical history and chronic conditions	Contextual adjustment of risk model outputs; personalisation of wellness recommendations. **Purpose:** Accurate, contextualised risk assessment. **Legal basis:** Explicit consent
Dietary intake logs	Processed by recommendation engine for nutritional guidance. **Purpose:** Personalised nutrition guidance. **Legal basis:** Explicit consent
Sleep data from self-report or wearables	Processed by wellness analytics model for sleep quality scoring. **Purpose:** Sleep and wellness monitoring. **Legal basis:** Explicit consent
Family medical history (if provided)	Used as a risk modifier in hereditary risk calculations. **Purpose:** More accurate risk prediction. **Legal basis:** Explicit consent this is sensitive data requiring specific, separate consent
Session and interaction data	Used to improve relevance of personalised recommendations within your session. **Purpose:** Platform personalisation. **Legal basis:** Legitimate interest in providing a functional service
Anonymised and aggregated data	Population-level health trend analytics; model validation; public health research. No individual is identifiable. **Purpose:** Platform improvement and public health insight. **Legal basis:** Anonymised data is outside the scope of DPDPA 2023

TAKE Solutions Limited will NEVER use your identifiable personal health data to train, fine-tune, improve, or validate AI models without obtaining a separate, explicit, standalone consent that is clearly distinct from your consent to use Platform services. If we ever seek such consent, it will be presented as an independent, optional request with a full explanation of what it involves, the ability to refuse without any impact on your service access, and the ability to withdraw at any time. This commitment is absolute and overrides any business interest in AI model improvement.

Fairness and Non-Discrimination in AI

AI systems trained on historical health data can perpetuate or amplify existing biases producing less accurate outputs for demographic groups under-represented in training data. TAKE Solutions Limited takes the following measures:

- AI models deployed on the Platform are assessed for performance consistency across age groups, genders, and where data permits ethnic and socioeconomic groups before deployment
- Where performance disparities are identified, models are adjusted, re-trained, or supplemented with alternative approaches before being made available to the affected user group
- Users are informed in the AI output interface where a model's accuracy may be less reliable for their specific demographic including an explicit recommendation to seek professional medical validation
- The Company's AI governance framework includes a fairness review checkpoint in the AI model lifecycle
- Users who believe an AI output may have been affected by demographic bias are encouraged to report this through the Grievance Officer channel such reports are treated as priority inputs for model review

This AI Transparency Policy will be reviewed and updated:

- At minimum every 6 months, or more frequently if material changes occur to AI systems on the Platform
- Whenever a new AI system category is introduced to the Platform
- Whenever a regulatory authority issues new guidance specifically applicable to AI in healthcare
- Whenever a material change is made to data processing arrangements with third-party AI providers

Material updates will be notified to Users via email and a prominent Platform notice. For significant changes affecting your rights, fresh consent will be sought where required.

SECTION V: COOKIE POLICY

This Cookie Policy ("**Policy**") explains how TAKE Solutions Limited ("**Company**", "**we**", "**us**", "**our**") uses cookies, web beacons, pixels, local storage objects, and similar tracking technologies (collectively, "**Cookies**") on the take.health website at https://www.take.health, the user dashboard at https://www.take.health/dashboard, and any associated digital interfaces operated by the Company (collectively, the "**Platform**").

By accessing the Platform, you will be presented with a Cookie Consent Banner through which you may accept, reject, or customise the categories of Cookies deployed on your device.

What Are Cookies?

Cookies are small text files placed on your device (computer, smartphone, tablet) by a website when you visit it. They serve a variety of functions from enabling basic website functionality to remembering your preferences and helping the Company understand how the Platform is being used.

Cookies may be:

- First-Party Cookies - set directly by take.health for Platform operations
- Third-Party Cookies - set by external service providers (e.g., analytics, marketing, or AI tools) whose services are embedded within the Platform

Cookies may also be classified by duration as:

- Session Cookies - temporary, deleted when you close your browser
- Persistent Cookies - remain on your device for a defined period or until manually deleted

Categories of Cookies Used

Strictly Necessary Cookies

Purpose: These Cookies are essential for the Platform to function. They enable core features such as login authentication, secure session management, account dashboard access at https://www.take.health/dashboard, and navigation between pages. The Platform cannot function properly without them.

Consent Required: No - these are deployed without consent on the basis that they are technically indispensable to the service you have requested. This is consistent with the DPDPA 2023's approach that processing necessary for the performance of a contract does not require separate consent.

Examples:

- Session authentication tokens for the user dashboard
- Security cookies (CSRF tokens) preventing cross-site request forgery
- Load balancing cookies to ensure consistent server performance
- Cookie consent preference storage (so your consent choices are remembered)

Retention: Session duration or up to 180 days for security purposes.

Functional / Preference Cookies

Purpose: These Cookies remember your preferences and personalise your experience on the Platform, including language settings, display preferences, previously completed onboarding steps, and health dashboard configurations.

Consent Required: Yes - deployed only upon your affirmative opt-in consent.

Examples:

- Language/locale preference storage
- User interface theme preferences (e.g., dark/high-contrast mode for accessibility)
- Health goal and wellness preference settings
- Partially completed health questionnaire session storage

Retention: Up to 6 months or until consent is withdrawn.

Analytics & Performance Cookies

Purpose: These Cookies collect anonymised or pseudonymised data about how Users navigate and interact with the Platform which pages are visited, how long Users spend on each section, error rates, and Platform performance metrics. This data helps the Company improve the Platform's functionality, user experience, and AI output quality.

Consent Required: Yes. deployed only upon your affirmative opt-in consent.

Third-Party Tools Used:

- Google Analytics 4 - page visit tracking, user journey analysis
- [Other Analytics Tool - heatmaps, session recording (anonymised)
- [Performance Monitoring Tools, server response times, error tracking

Important Notice for Health Platforms: Even anonymised behavioural analytics on a health platform can constitute processing of health-related data patterns. The Company ensures that analytics data is aggregated and de-identified before any third-party processing occurs, and that no health-specific behavioural data (e.g., which health condition page was visited) is transmitted in an identifiable form to any analytics provider.

Retention: Up to 6 months.

AI Personalisation Cookies

Purpose: These Cookies are unique to take.health as an AI-driven health platform. They store session-level identifiers and interaction patterns that enable the Platform's AI/ML engine to personalise health insights, refine risk assessments over time, and improve the relevance of preventive health recommendations presented to the User.

Consent Required: Yes, explicit, granular opt-in consent required, given the sensitive health-data-proximate nature of this processing.

What they do NOT do:

- They do not store raw health records or diagnostic data on your device
- They do not link your AI personalisation profile to advertising networks
- They do not share your behavioural patterns with third-party AI vendors in an identifiable form without separate consent

Retention: Up to 6 months from last Platform interaction.

Marketing & Advertising Cookies

Purpose: These Cookies track Users across the web to enable targeted advertising and marketing communications by the Company and its authorised marketing partners.

Consent Required: Yes, explicit opt-in consent required.

Third-Party Tools Used (if applicable):

- Meta Pixel
- Google Ads / Google Tag Manager
- Other Retargeting Tools

Important Notice: Given that take.health is a health platform, the Company is committed to ensuring that Marketing Cookies do NOT enable third-party advertisers to infer, derive, or profile Users' health conditions, medical histories, or wellness vulnerabilities for commercial targeting purposes. This would constitute processing of sensitive health data without adequate safeguards under the DPDPA 2023 and is absolutely prohibited.

Retention: Up to 6 months.

Third-Party Embedded Content Cookies

Purpose: Where the Platform embeds third-party content such as video explainers, social media widgets, or external health data tools, those third parties may set their own Cookies subject to their respective privacy policies.

The Company does not control Third-Party Cookies and is not responsible for the data practices of third-party providers. Users are encouraged to review the privacy and cookie policies of all third-party services embedded on the Platform.

Cookie Consent Management

The Consent Banner

Upon your first visit to the Platform, a Cookie Consent Banner will appear. The banner will:

- Inform you of the categories of Cookies in use
- Provide separate, granular toggle controls for each non-essential Cookie category
- Allow you to Accept All, Reject All Non-Essential, or Customise your preferences
- Contain a direct link to this full Cookie Policy
- Not use pre-ticked checkboxes, dark patterns, or deceptive design that makes rejection more difficult than acceptance in full compliance with the DPDPA 2023 consent standards and Consumer Protection (E-Commerce) Rules 2020

Withdrawing or Changing Consent

You may change or withdraw your Cookie consent at any time by:

- Accessing the **Cookie Preference Centre**, accessible via the [Cookie Settings] link in the footer of every Platform page
- Clearing Cookies through your browser settings noting that this will also delete session cookies and may log you out of the Platform
- Contacting the Company atsupport@takesolutions.com

Withdrawal of consent does not affect the lawfulness of Cookie processing that occurred prior to withdrawal.

Consent Records

In compliance with the DPDPA 2023, the Company maintains a record of each User's Cookie consent choices, including the date, time, and scope of consent given or withdrawn. These records are retained for 3 YEARS for audit and compliance purposes, consistent with the consent record retention period specified in of this Document.

Cookies & Health Data: A Specific Caution

take.health draws specific attention to the intersection of cookies and health data. Under the DPDPA 2023 and the SPDI Rules 2011, health and medical data is classified as sensitive personal data and attracts the highest standard of protection.

The Company applies the following specific safeguards to cookie-based processing on this health Platform:

- No Cookie on this Platform shall directly store raw health data, diagnostic inputs, or medical records on a User's device
- Analytics Cookies shall not transmit data in a manner that enables identification of a User's specific health conditions or medical history to third parties

- Marketing Cookies shall not be used to build health condition profiles for commercial advertising targeting
- Any Cookie that processes data derived from health interactions will be treated as processing sensitive personal data and will require explicit, informed, and revocable consent
- All third-party analytics providers receiving behavioural data from this Platform are contractually prohibited from correlating Platform usage patterns with health condition inferences

Browser-Level Cookie Controls

Users may manage Cookies directly through their browser settings:

- **Google Chrome:** Settings - Privacy and Security - Cookies and other site data
- **Mozilla Firefox:** Options - Privacy & Security - Cookies and Site Data
- **Safari:** Preferences - Privacy - Manage Website Data
- **Microsoft Edge:** Settings - Privacy, Search, and Services - Cookies

Please note that blocking all Cookies via browser settings may impair the functionality of the Platform, including preventing login to the user dashboard.

Updates to This Policy

This Cookie Policy will be reviewed and updated periodically to reflect changes in the Cookies deployed on the Platform, changes in applicable law, or changes in data practices. Material changes will be communicated through the Platform's notification mechanism and a refreshed consent banner upon your next visit.

SECTION VII: ACCEPTABLE USE POLICY

This Acceptable Use Policy ("AUP") governs the conduct of all individuals who access or use the take.health Platform including the website (https://www.take.health), the user dashboard (https://www.take.health/dashboard), associated applications, and any related services provided by the Company (collectively, the "Platform").

The purpose of this AUP is to:

- Protect the integrity, safety, and reliability of the Platform and its AI-enabled health services
- Ensure that the Platform is not used for harmful, illegal, fraudulent, or unethical purposes particularly in the context of health and medical information, where misuse can cause direct harm to human life
- Preserve the interests of all Users, the Company, and the broader healthcare ecosystem
- Discharge the Company's obligations as an intermediary under Rule 3(1)(b) of the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules 2021, which requires intermediaries to publish and enforce rules prohibiting specified categories of unlawful and harmful content and conduct
- Comply with applicable Indian law, including the Information Technology Act 2000; the Bharatiya Nyaya Sanhita 2023 (BNS); the DPDPA 2023; the Drugs and Cosmetics Act 1940; the Narcotic Drugs and Psychotropic Substances Act 1985; and the National Medical Commission Act 2020

This AUP is a legally binding document. By accessing or using the Platform, you agree to comply with this AUP in its entirety. Violation of this AUP may result in immediate suspension or permanent termination of access, civil liability, and/or referral to law enforcement authorities.

Permitted Use

Users are permitted to access and use the Platform solely for the following lawful and intended purposes:

- Accessing personalised, AI-generated preventive health insights, wellness scores, and health risk assessments for their own personal, non-commercial use
- Uploading their own health data (including diagnostic reports, wearable device data, or questionnaire inputs) for the purpose of receiving Platform services
- Communicating with Platform-authorised healthcare professionals in accordance with the Telemedicine Practice Guidelines 2020
- Accessing health and wellness educational content published on the Platform
- Managing their personal Account, subscription, and data preferences through the user dashboard
- Contacting the Platform's support or Grievance Officer for legitimate service-related queries

Prohibited Conduct

The following categories of conduct are strictly prohibited on the Platform. This list is illustrative, not exhaustive. Any conduct not explicitly listed but contrary to the spirit of this AUP, applicable Indian law, or the ethical standards of a healthcare platform may be treated as a violation.

Users must not:

- **Misrepresent health data** - upload, input, or submit false, fabricated, or manipulated health records, test results, symptoms, or diagnostic data to obtain inaccurate or inflated health assessments
- **Use AI outputs as clinical diagnoses** - present AI-generated health insights or wellness reports as substitutes for professional medical advice, formal clinical diagnoses, or prescription recommendations, to themselves or to any third party
- **Solicit prescription medications** - use the Platform, its AI outputs, or any communication channel on the Platform to request, solicit, or procure prescription-only medications, controlled substances, or scheduled drugs in violation of the Drugs and Cosmetics Act 1940 and the Narcotic Drugs and Psychotropic Substances Act 1985
- **Fabricate medical emergencies** - falsely represent a medical emergency through the Platform in a manner that wastes emergency resources or misleads Platform operations
- **Circumvent medical care** - use the Platform to avoid, delay, or discourage necessary, urgent medical attention in situations that require immediate clinical intervention. The Platform is a preventive wellness tool only and is not designed for emergency or acute medical situations

Users must not:

- Impersonate any Registered Medical Practitioner, nurse, pharmacist, psychologist, or other regulated healthcare professional on the Platform
- Upload fraudulent medical credentials, registration numbers (MCI/NMC/State Medical Council), or institutional affiliations

- Impersonate any employee, officer, AI model, or representative of the Company
- Create multiple accounts for the purpose of circumventing access restrictions, subscription limits, or enforcement actions
- Use another person's identity, health data, or Account credentials without that person's express written consent

Users must not upload, transmit, post, or otherwise make available on the Platform any content that:

- Is grossly offensive, obscene, pornographic, or sexually explicit under Section 67 of the IT Act 2000 or equivalent provisions of the BNS 2023
- Constitutes health misinformation false or unverified claims about treatments, cures, vaccines, or health conditions that are demonstrably inconsistent with evidence-based medical consensus
- Is hateful, threatening, harassing, or discriminatory on the basis of religion, caste, gender, disability, ethnicity, or any other protected characteristic
- Endangers public health or safety, including content promoting self-harm, eating disorders, or dangerous unverified health practices
- Violates the privacy or data rights of any individual including sharing another person's health records, diagnostic data, or personal health information without consent
- Is defamatory of any individual, healthcare professional, institution, or regulated entity
- Is prohibited under any applicable Indian law, including the IT Act 2000, the BNS 2023, the DPDPA 2023, and the Consumer Protection Act 2019

Users must not:

- Attempt to gain unauthorised access to any part of the Platform, including other Users' Accounts, the AI model backend, the administrative dashboard, or the database systems
- Conduct or facilitate any denial-of-service (DoS) or distributed denial-of-service (DDoS) attacks against the Platform
- Upload, transmit, or introduce viruses, malware, ransomware, spyware, Trojan horses, or any other malicious code to the Platform
- Use automated scripts, bots, crawlers, scrapers, or data-mining tools to extract Platform Content, AI Outputs, or User data at scale
- Attempt to reverse-engineer, decompile, disassemble, or extract the source code, AI model architecture, training data, or proprietary algorithms of the Platform
- Exploit any bug, vulnerability, or unintended feature of the Platform. Users who discover vulnerabilities are encouraged to report them responsibly to support@takesolutions.com rather than exploit them
- Circumvent or disable any security, access control, or data protection measure implemented on the Platform

Users must not:

- Use the Platform or its AI Outputs for commercial purposes including resale, redistribution, or incorporation into competing products or services without prior written authorisation from the Company
- Use the Platform to solicit or market health products, supplements, insurance products, or competing health services to other Users
- Conduct unauthorised market research, competitive intelligence gathering, or data harvesting against the Company's interests
- Post promotional content, spam, phishing links, or affiliate marketing materials through any User-facing channel on the Platform

Users who are healthcare professionals accessing the Platform in a professional capacity must not:

- Use the Platform to issue prescriptions, diagnoses, or treatment plans that fall outside the scope permitted by the Telemedicine Practice Guidelines 2020
- Access patient health data through the Platform outside the scope of a valid, consented healthcare relationship
- Facilitate or encourage patients to use the Platform as a substitute for clinically indicated in-person medical care
- Engage in any conduct that violates the ethics regulations of the National Medical Commission or relevant State Medical Council

Reporting Prohibited Conduct

The Company encourages all Users and third parties to report suspected violations of this AUP to the Grievance Officer.

Grievance Officer AUP Violation Reports
Email: support@takesolutions.com | Subject: "AUP Violation Report" Acknowledgement within 24 hours | Resolution within 15 days (IT Intermediary Guidelines 2021)

Reports should include: a description of the suspected violation; the specific content or conduct at issue; the URL or location on the Platform where it occurred; and the reporter's contact details. The Company shall investigate all bona fide reports in good faith. Anonymous reports will be considered but may be limited in their investigative utility.

Consequences of Violation

The Company reserves the right, at its sole discretion and without prior notice where urgency or safety demands, to take any or all of the following actions upon a violation of this AUP:

- Issue a formal written warning to the User
- Temporarily suspend the User's Account and access to the Platform
- Permanently terminate the User's Account and bar future registration
- Remove or disable access to specific UGC or content found to be in violation
- Retain records of the violation and associated data for legal proceedings, regulatory reporting, or law enforcement cooperation

- Refer the matter to law enforcement authorities and cooperate fully with investigations under the IT Act 2000, the BNS 2023, the DPDPA 2023, and other applicable Indian law
- Initiate civil or criminal legal proceedings against the User for damages, injunctive relief, or other remedies available under Indian law

The Company's safe harbour protection under Section 79 of the IT Act 2000 is contingent on acting expeditiously upon notice of a violation. Accordingly, enforcement actions under this AUP are not merely discretionary they are a legal necessity for the Company's own intermediary protection. Users should expect prompt, firm enforcement of this AUP in all cases.

Special Obligations Regarding Minors

In compliance with the DPDPA 2023 (Section 9), which imposes heightened obligations regarding the processing of children's data (persons under 18 years):

- The Platform shall not knowingly permit any person below the age of 18 years to create an independent Account without verifiable parental or guardian consent
- Any User providing health data on behalf of a minor warrants that they are the minor's legal parent or guardian
- Users must not submit the health data of any minor without the requisite parental consent
- Any suspected instance of a minor accessing the Platform without appropriate consent should be reported immediately to support@takesolutions.com

Changes to This AUP

The Company reserves the right to amend this AUP at any time to reflect changes in applicable law, Platform features, or regulatory guidance. Users will be notified of material changes via email or in-Platform notification at least 15 days before changes take effect. Continued use of the Platform after such notification constitutes acceptance of the updated AUP.

SECTION VIII: CONSENT MANAGEMENT FRAMEWORK

This Consent Management Framework and Electronic Consent Policy ("CMF" or "this Framework") governs the manner in which TAKE Solutions Limited ("Company") obtains, records, manages, and honours the consent of Users for all forms of personal data processing carried out through the take.health Platform.

Consent is the cornerstone of lawful data processing under Indian law. For a preventive healthcare AI platform that processes sensitive health data, obtaining consent in the correct legal form is not merely good practice it is a non-negotiable statutory obligation, the failure of which can expose the Company to penalties, regulatory enforcement, and loss of User trust.

Definitions

For the purposes of this Framework, the following terms apply (in addition to the definitions in ABOVE):

- **"Consent"** - A freely given, specific, informed, and unambiguous indication of the Data Principal's wishes provided through a clear affirmative action signifying agreement to the processing of their personal data for a stated purpose
- **"Data Principal"** - The individual to whom personal data relates i.e., the User

- **"Data Fiduciary"** - The Company, which determines the purpose and means of processing personal data
- **"Data Processor"** - Any third party that processes personal data on behalf of the Company (e.g., cloud hosting providers, AI model vendors, analytics partners)
- **"Sensitive Personal Data"** - Health and medical data, biometric data, financial data, and any other category specified under the SPDI Rules 2011 and the DPDPA 2023
- **"Consent Artefact"** - A machine-readable electronic record of consent as defined in the ABDM Health Data Management Policy
- **"Purpose Limitation"** - The principle that personal data collected for a specified purpose may not be processed for any other purpose without fresh consent
- **"Withdrawal of Consent"** - The revocation by the Data Principal of previously granted consent, which must be as easy to execute as the giving of consent

Principles of Valid Consent

All consent obtained by the Company must conform to the following six legally mandated principles:

- Consent must not be conditioned as a pre-requisite for access to a service where the data processing is not strictly necessary for that service. Bundling consent to non-essential processing (e.g., marketing profiling) with consent to core service delivery is prohibited under the DPDPA 2023.
- Consent must be sought separately for each distinct purpose of data processing. A single omnibus consent for "all data processing activities" does not satisfy the specificity requirement under Section 6 of the DPDPA 2023.
- Before or at the time of collecting consent, the Company must provide Users with a Data Protection Notice that clearly states: who is collecting the data; what data is being collected; why it is being collected; with whom it will be shared; for how long it will be retained; and what rights the User has.
- Consent must be expressed through a clear affirmative action such as ticking an unchecked box, clicking a clearly labelled "I Agree" button, or signing an electronic form. Silence, inactivity, pre-ticked boxes, or implied conduct do not constitute valid consent.
- Data collected under a given consent may only be processed for the purpose stated at the time of consent. Any new or extended purpose requires fresh consent.
- The Data Principal must be able to withdraw consent at any time, through a mechanism that is as simple and accessible as the mechanism through which consent was given. Withdrawal does not affect the lawfulness of prior processing.

Five-Layer Consent Architecture

Given the multi-layered nature of Take.health's data processing: spanning account registration, health data input, AI analysis, third-party sharing, and ABDM integration, the consent architecture is structured across five distinct consent layers:

Layer 1 Registration Consent (Account Creation)

Trigger: Presented during User account creation on the Platform.

Data Processed: Name, email address, mobile number, date of birth, gender.

Consent Obtained For:

- Creating and maintaining a Platform account;
- Sending service-related communications (OTPs, account notifications, appointment reminders);
- Processing personal data in accordance with the Privacy Policy; and
- Agreement to the Terms of Service and this CMF.

Mechanism: Unchecked checkboxes with clear labels linking to full Privacy Policy and Terms of Service. Clicking "Create Account" without ticking these boxes will not proceed.

Consent Record: Timestamp, IP address, user ID, version of policies accepted stored in the Company's Consent Management System.

Layer 2 Health Data Processing Consent (Sensitive Personal Data)

Trigger: Presented before the User submits any health data including health questionnaires, diagnostic uploads, wearable device data, medical history, or biometric inputs.

Data Processed: Health metrics, medical history, diagnostic reports, symptoms, biometric data, lifestyle data all qualifying as **Sensitive Personal Data** under SPDI Rules, 2011.

Consent Obtained For:

- Processing health data to generate AI-driven preventive health insights and wellness scores;
- Storing health data securely for the purpose of longitudinal health tracking;
- Using anonymised/de-identified health data for improving AI model accuracy (with explicit opt-in for this purpose, separate from service delivery); and
- Sharing health data with authorised healthcare professionals on the Platform (if applicable), with the User's specific consent for each such interaction.

Mechanism: Separate, clearly labelled consent screen before first health data input. Must include:

- Plain-language explanation of what health data is being collected and why;
- Explicit statement that health data is Sensitive Personal Data with enhanced protections;
- Separate toggles for: (a) core service processing (mandatory for service delivery), and (b) AI model improvement (voluntary); and
- A link to the full Privacy Policy.

Granularity Requirement: Consent for AI model improvement is **separate and voluntary** and must not be bundled with consent for core health service delivery. A User must be able to use the Platform's core features without consenting to their data being used for AI training.

Consent Record: Full audit trail stored data category, purpose consented to, timestamp, user identifier, method of consent, policy version.

Layer 3 AI Output & Disclaimer Acknowledgement Consent

Trigger: Presented before the User receives their first AI-generated health insight, wellness score, or risk assessment.

Purpose: This is not a data processing consent layer it is an informed acknowledgement mechanism mandated by the **MeitY AI Advisory, March 2024** and the Medical Disclaimer obligations arising from the NMC Act, 2020 and Consumer Protection Act, 2019.

Acknowledgement Obtained For:

- Confirming the User understands that AI outputs are **not medical diagnoses** and do not substitute for professional clinical advice;
- Confirming the User will consult a qualified Registered Medical Practitioner before acting on any Platform health recommendation;
- Acknowledging the inherent probabilistic limitations of AI health models; and
- Confirming the User is not using the Platform in an emergency medical situation.

Mechanism: A mandatory acknowledgement screen (non-skippable, requiring affirmative click of "I Understand and Agree") before first AI output delivery and upon each major update to the AI model disclaimer.

Legal Significance: This layer creates a documented evidentiary record that the User received, read, and acknowledged the medical and AI limitations disclosure which is critical for the Company's defence against any future negligence or consumer complaint claims.

Layer 4 Third-Party Sharing & Data Transfer Consent

Trigger: At the time of, or before, any data sharing with third parties that goes beyond strictly necessary service delivery.

Categories of Third-Party Sharing Requiring Explicit Consent:

- Sharing health data with **insurance partners**, wellness product companies, or employers;
- Sharing data with **research institutions** (even in anonymised form, if re-identification risk exists);
- Sharing data with **ABDM / ABHA** requires a structured consent artefact;
- Enabling **cross-platform data portability** to third-party health apps; and
- Any transfer of personal or health data to **servers or entities outside India** (cross-border transfers).

Mechanism: Separate consent requests at the point each such sharing is first proposed, with:

- Name and description of the third party;
- Specific data to be shared;
- Purpose of sharing;
- Duration; and
- User's right to refuse without losing access to unrelated core services.

Layer 5 Marketing & Communications Consent

Trigger: During registration (as a separate, optional consent item) and upon any new marketing initiative.

Consent Obtained For:

- Sending promotional emails, health newsletters, and wellness campaign communications;
- Targeted digital advertising (separate from Platform personalisation);
- Sharing contact details with marketing partners for co-branded health campaigns; and
- Conducting User satisfaction surveys and feedback research.

Mechanism: Separate, clearly labelled opt-in checkboxes unchecked by default. Users who do not opt in for marketing must still receive all service-related communications without penalty.

Unsubscribe: Every marketing communication must contain a one-click unsubscribe mechanism. Unsubscribe requests must be processed within **10 business days**.

CONSENT FOR MINORS

In compliance with Section 9 of the DPDP Act, 2023, which imposes specific protections for the processing of data of children (persons under 18 years):

a. The Platform shall not process the personal or health data of any person below the age of 18 years without the verifiable consent of a parent or legal guardian;
b. The Company shall implement age verification mechanisms at the registration stage to identify minor users;
c. Where a parent or guardian consents on behalf of a minor, the consent record shall include the guardian's identity, relationship to the minor, and confirmation of guardianship;
d. AI-generated health outputs for minor Users shall be routed to the consenting guardian's account with appropriate safeguards; and
e. The Company shall not use a minor's data for any purpose beyond core health service delivery specifically, marketing profiling of minor users is absolutely prohibited.

WITHDRAWAL OF CONSENT

Every Data Principal has an unconditional right to withdraw consent for any purpose for which consent was previously granted, at any time, without providing reasons.

Consent may be withdrawn through:

- The **Privacy Dashboard** within the User's account at https://www.take.health/dashboard which shall provide a clear interface to review and withdraw each active consent; or
- A written request sent to _____, processed within **72 hours of receipt**.

Upon withdrawal of consent for a specific processing purpose:

a. The Company shall cease processing for that purpose immediately;
b. Data processed prior to withdrawal remains lawfully processed and is not required to be deleted solely on account of withdrawal (unless a separate erasure request is made);
c. If withdrawal relates to processing necessary for core service delivery, the Company will notify the User that the relevant feature or service cannot be provided without that consent; and
d. The Company shall not penalise, degrade, or otherwise disadvantage a User for withdrawing consent for non-essential processing.

CONSENT RECORDS & AUDIT TRAIL

The Company shall maintain a comprehensive Consent Management Register containing, for every consent interaction:

- User identifier (pseudonymised);
- Specific purpose for which consent was given or withdrawn;
- Date and timestamp;
- Version of the privacy policy and consent notice in force at the time;

- Method of consent (checkbox, button click, consent artefact);
- IP address and device type (for technical verification); and
- Status: Active / Withdrawn / Expired.

CONTACT & GRIEVANCE

For any query, request, or complaint related to consent including requests to view, update, or withdraw consent Users may contact:

Data Protection / Privacy Officer: Parmeshwer Dhangre
Name:
Email: support@takesolutions.com
Acknowledgement: Within 24 hours
Resolution: Within 15 days